

25NWCV03668 25NWCV03668

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Case Number: 25NWCV03668 Hearing Date: July 31, 2026 Dept: SED

KISHA LASHAUN MCTHIRSTY V. GENERAL MOTORS LLC

CASE NO.: 25NWCV03668

HEARING: 08/03/2026 @ 9:30 a.m.

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TENTATIVE ORDER

Plaintiff Kisha LaShaun McThirsty's motion for attorneys' fees is GRANTED in the total reduced amount of \$24,378.00.

Defendant General Motors, LLC is ordered to pay the awarded amount within 90 days of this Order.

Moving party to give notice.

Plaintiff Kisha LaShaun McThirsty (Plaintiff) moves for an order granting attorney's fees, costs and expenses in the total amount of \$31,642.62.

Background

On October 15, 2025, Plaintiff filed the operative Complaint against Defendant General Motors LLC (Defendant) and Does through 100, inclusive, asserting four causes of action: (1) Breach of Implied Warranty (2) Breach of Express Warranty; (3) Violation of the Song Beverly Consumer Warranty Act; and (4) Violation of California Civil Code Section 1793.2(b).

On June 15, 2026, Plaintiff filed the instant motion for attorneys' fees, costs, and expenses.

On July 21, 2026, Defendant filed an opposition.

On July 27, 2026, Plaintiff filed a reply.

Legal Standard

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)¿

Analysis

Plaintiff moves for an order granting attorney's fees, costs, and expenses in the total amount of \$31,642.62.

Here, it is undisputed that Plaintiff is the prevailing party in this action and is entitled to reasonable attorneys' fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiff's counsel request hourly rates of \$350 for attorney Michael Josephson and \$450 for attorney Bryan Geoulla. (Geoulla Decl., ¶ 53.) In support of the requested rates, counsel cites cases approving their hourly rate in comparable matters. (Id. at ¶¶ 13-20; Josephson Decl., ¶ 9-12.)

The matter of the reasonableness of attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a reasonable hourly rate is the

prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

Based on counsel's supporting evidence and the Court's familiarity with prevailing market rates for comparable warranty litigation in this community, the Court finds that the requested hourly rates are reasonable. Additionally, Defendant does not challenge the reasonableness of the requested hourly rate in its opposition.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiffs seek an award for attorney's fees representing a total amount of 67.7 hours. (Motion p. 3.)

The Court has reviewed and considered Plaintiff's counsel's attached billing records, together with Defendant's objections to the reasonableness of certain billing entries. (Geoulla Decl., ¶ 50, Ex. 3; Opp. pp. 3-7.)

Plaintiff's

counsel billed 1.7 hours for pre-engagement work on September 22, 2025. In opposition, Defendant relies on Hensley v. Eckerhart (1983) 461 U.S. 424, 434 (Hensley), which instructs courts to exclude hours that are not reasonably expended and that would not properly be billed to a client. The Court agrees that Hensley supports excluding time attributable to client intake or other pre-engagement administrative tasks that are not properly shifted to an opposing party. However, the Court does not find that Hensley supports striking the entire 1.7

hours because the billing entries also reflect compensable legal work, including explaining Plaintiff's legal rights, discussing potential damages, advising Plaintiff regarding the representation, and corresponding regarding documents necessary to evaluate the claim. Accordingly, the Court will strike 0.9 hours from Plaintiff's motion.

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Plaintiff's

counsel billed 1.1 hours for reviewing Defendant's Answer on November 17, 2025.

While counsel was entitled to review

Defendant's Answer and affirmative defenses, this is a routine Song-Beverly matter and the Answer is largely standardized. Accordingly, the Court will strike 0.6 hours from Plaintiff's motion.

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Plaintiff's

counsel billed 2.8 hours for preparing initial disclosures on January 15, 2026.

The disclosures required by Assembly

Bill 1755 are largely standardized, although some case-specific information must be incorporated. Accordingly, the Court will strike 1.3 hours from Plaintiff's motion.

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Plaintiff's

counsel billed 13.8 hours reviewing Defendant's initial disclosures and document production. While review of

Defendant's production is compensable, the Court finds the time excessive in light of the routine nature of this Song-Beverly action, the limited litigation conducted, counsel's familiarity with similar manufacturer document productions, and the extensive internal memoranda and strategy notes prepared in connection with the review. Accordingly, the Court will strike 6.3 hours from Plaintiff's motion.

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Plaintiff's

counsel billed 2.6 hours on February 17 through 19, 2026 to review the video recording of Plaintiff's deposition, analyze the deposition transcript, and discuss the deposition with Plaintiff. While the Court finds that post-deposition review and client communication are compensable, the Court concludes that the time billed is excessive in light of

the straightforward issues presented. Accordingly,
the Court will strike 1.1 hours from Plaintiff's motion.

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Plaintiff's

counsel billed 1.1 hours on March 4, 2026 to review Defendant's Code of Civil
Procedure section 998 offer. While the

Court finds that counsel was entitled to review and analyze the settlement
offer, the Court concludes that the time billed is excessive given the routine
nature of the offer and issues presented. Accordingly, the Court will strike 0.6 hours
from Plaintiff's motion.

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Plaintiff's

counsel billed 5.9 hours preparing for Defendant's Person Most Knowledgeable
deposition. While preparation for a PMK

deposition is compensable, the Court finds the time billed excessive. The Court finds that 3.5 hours was reasonably
necessary to prepare for the deposition. Accordingly, the Court will strike 2.4 hours
from Plaintiff's motion.

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Plaintiff's

counsel billed 10.9 hours throughout the litigation communicating with
Plaintiff regarding the status of the case, ongoing vehicle issues, litigation
strategy, discovery obligations, and settlement. The Court recognizes that counsel has an
obligation to keep a client reasonably informed and that attorney-client
communications are compensable. However,
the Court finds that the total time billed is excessive in light of the
relatively straightforward nature of this routine Song-Beverly action, which
resolved within approximately five months and involved limited litigation
activity. Accordingly, the Court will
strike 3.9 hours from Plaintiff's motion.

Defendant argues that all pre-litigation work should be excluded
because it was performed before the Complaint was filed and relies on *Dominguez*
v. American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53 (*Dominguez*).
(Opp., pp. 4-5.) The Court is not persuaded. Although *Dominguez* held that the
Song-Beverly Consumer Warranty Act does not require a manufacturer to reimburse
a consumer for attorney fees incurred in successfully obtaining a repurchase or
replacement before litigation is commenced, the pre-litigation timing of the

manufacturer's repurchase offer was central to that decision. (Dominguez, supra, 160 Cal.App.4th at 58-59.) There, plaintiff's counsel sent a pre-suit demand letter requesting repurchase, the manufacturer responded with a repurchase offer before suit was filed, and litigation ensued only after the parties were unable to agree on attorney fees. (Ibid.)

Here, by contrast, Defendant did not extend its repurchase offer until after litigation had commenced. (Geoulla Decl., ¶¶ 37-41, Ex. 1; Kay Decl., ¶ 10.) Moreover, Civil Code section 1794, subdivision (d) permits recovery of attorney fees reasonably incurred "in connection with the commencement and prosecution" of the action. (Civ. Code, § 1794, subd. (d).) Counsel's pre-litigation work, including communicating with Plaintiff, reviewing and organizing the vehicle's repair history, evaluating potential claims, analyzing warranty and purchase documents, and preparing the matter for filing, was reasonably necessary to investigate the claims and facilitate the commencement of this action.

Accordingly, the Court will strike a total of 17.1 hours from the fee request, consisting of 13.6 hours billed by attorney Bryan Geoulla at \$450 per hour and 3.5 hours billed by attorney Michael Josephson at \$350 per hour, for a total reduction of \$7,345.00. The Court therefore awards attorney's fees in the amount of \$23,010.00, representing 50.6 hours reasonably incurred.

Memorandum of Costs

A verified memorandum of costs is prima facie evidence concerning the reasonableness of costs and expenses claimed by the Plaintiff. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs". (Id.)

Plaintiff filed a costs memorandum seeking \$1,447.62, in litigation costs related to filing and motion fees, service of process, and electronic filing or service.

In opposition, Defendant argues that Plaintiff has failed to establish that all requested costs were reasonably incurred or recoverable under Code of Civil Procedure sections 1032 and 1033.5 and Civil Code section 1794, subdivision (d). (Opp., pp. 7–9.) Specifically, Defendant seeks to tax \$152.62 in costs, consisting of: (1) \$23.00 in One Legal fees, arguing the charges include avoidable convenience fees incurred for counsel's benefit rather than necessary litigation expenses; (2) \$50.00 for service of process, arguing Plaintiff failed to provide sufficient documentation demonstrating the service was statutorily authorized and reasonably necessary; and (3) \$79.62 listed as "Other," arguing the entry is vague, unsupported, and not recoverable because it is neither itemized nor identified as an allowable statutory cost.

In reply, Plaintiff argues that Defendant has not rebutted the presumption that the requested costs were reasonably incurred. Plaintiff contends that the challenged \$152.62 is supported by the One Legal invoices attached to counsel's declaration and consists of recoverable service-of-process, electronic filing, and related court technology fees.

The Court finds that although Plaintiff attaches One Legal invoices documenting various e-filing-related expenses, the invoices do not clearly correspond to the \$79.62 identified in the Memorandum of Costs as "Other," nor does Plaintiff explain how that amount was calculated. Therefore, Plaintiff has not adequately substantiated that specific cost, and the Court taxes costs in the amount of \$79.62.

Accordingly, Plaintiff is awarded litigation costs in the amount of \$1,368.00.

Conclusion

Based on the foregoing, Plaintiff Kisha LaShaun McThirsty's motion for attorneys' fees is GRANTED in the total reduced amount of \$24,378.00, representing attorney's fees in the amount of \$23,010.00 and litigation costs in the amount of \$1,368.00.

Defendant General Motors, LLC is ordered to pay the awarded amount within 90 days of this Order.